

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS****Index No.****Filed:** _____

-----X
ALHAJI BAH, KASSOUM FOFANA, as Administrator of the
Estate of ABOUBACAR FOFANA, on his own behalf and
KASSOUM FOFANA individually

Plaintiffs,

-against-

Plaintiff designates
KINGS COUNTY
as the place of trialThe basis of venue is
Plaintiff's Residence

CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT,
OFFICER "JOHN" KIM, whose first name is unknown,
"JOHN DOE POLICE OFFICERS 1-5 whose numbers are
unknown and are meant to be NYPD OFFICERS whose names
are Unknown, in their individual and official capacities, and
DAMANI THOMAS

Plaintiff's address
220 Montgomery St.
Apt #16E
Brooklyn, NY 11225

Defendants.

-----X
To the above named Defendants

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to
serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice
of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons,
exclusive of the day of service (or within 30 days after the service is complete if this summons is
not personally delivered to you within the State of New York); and in case of your failure to appear
or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: July 2, 2018
Brooklyn, New York

Defendants' Address

CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK POLICE DEPARTMENT
1 Police Plaza
New York, New York 10007

OFFICER "JOHN" KIM
1 Police Plaza
New York, New York 10007

JOHN DOE OFFICERS 1-5
1 Police Plaza
New York, New York 10007b

DAMANI THOMAS
George R Vierno Center ("GRVC")
Book and Case: 8251701264
09-09 Hazen Street
East Elmhurst, NY 11370

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

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ALHAJI BAH, KASSOUM FOFANA, as Administrator of the
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Plaintiffs,

-against-

CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT,
OFFICER "JOHN" KIM, whose first name is unknown, "JOHN
DOE POLICE OFFICERS whose numbers are unknown and are
meant to be NYPD OFFICERS whose names are Unknown, in their
individual and official capacities, DAMANI THOMAS

Defendants.
-----X

Index No.

**VERIFIED
COMPLAINT**

**JURY TRIAL
DEMANDED**

Plaintiffs by their attorney, **MUSTAPHA NDANUSA, ESQ.**, complaining of the
defendants respectfully allege as follows.

NATURE OF THE ACTION

1. Plaintiffs bring this action against the City of New York, the New York Police Department, and several individual defendants for physical and psychological injuries (including loss of enjoyment of life), along with past and future medical expenses, alleging state created danger, negligence, assault, battery, intentional infliction of emotional distress, reckless endangerment, and negligent hiring, training, and supervision of the defendant detectives resulting arising out of the individual defendants' actions from approximately 11:30pm on July 13, 2017 to about 3:30am on July 14, 2017. (The facts underlying the allegations set forth in this paragraph - that is, the acts occurring during the aforementioned time period -- are further described below and are hereinafter referred to as the "Incident.")

PARTIES

2. At all times hereinafter mentioned, plaintiff, **ALHAJI BAH**, was and still is a resident of the County of Kings, City and State of New York.

3. The decedent, **ABOUBACAR FOFANA**, was at all times described herein a resided of the county of Kings, City and State of New York.

4. **KASSOUM FOFANA**, is the voluntary Administrator of goods, chattels, credits of Decedent, **ABOUBACAR FOFANA**.

5. That in bringing this action against the above-named defendants, plaintiff, **KASSOUM FOFANA**, continues to act in his representative capacity on behalf of the Estate of **ABOUBACAR FOFANA** and act individually as the father of the decedent.

6. At all times hereinafter mentioned, defendant, **CITY OF NEW YORK** (hereinafter "CITY"), was and still is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

7. That the defendant, **CITY OF NEW YORK** maintains a police force known as **THE NEW YORK CITY POLICE DEPARTMENT**.

8. At all times hereinafter mentioned, defendant **NEW YORK CITY POLICE DEPARTMENT** (hereinafter "NYPD") is a political subdivision of the defendant **CITY**.

9. At all times hereinafter mentioned, defendant **CITY**, employed persons as police officers and said persons were so employed as police officers by and through the defendant **NYPD**.

10. Defendants **CITY** and **NYPD** were responsible for the training and supervision of police personnel and were also responsible for enforcing the regulations and policies of the New York City Police Department and for ensuring that New York City Police Department employees obey, employ and implement regulations and policies.

11. In addition to the facts alleged in the following sub paragraphs, the following

defendants are all sued in their individual and official capacities and all acted within the scope of their employment and under color of state law, to wit, under color of statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or City of New York.

12. At all times hereinafter mentioned, defendant Police officer **“JOHN” KIM (“KIM”)** and Police Officers **“JOHN DOES”** and their agents, assistants and employees acted pursuant to the policies, regulations or decisions officially adopted or promulgated by agents of defendant NYPD, whose acts may fairly be said to represent official policy or governmental custom of the defendants CITY and NYPD.

13. Defendant Detective John Does #1-3 (**“John Does”**) were, at the time of the Incident, detectives employed by the NYPD and stationed at, upon information and belief, the NYPD's 71st Precinct.

14. Defendant John Does were on duty during the Incident and were thus acting within the scope of employment by the NYPD and Defendant City of New York.

15. Defendants City of New York, NYPD and the individual police **officers** are hereinafter referred to, collectively, as **“Defendants.”**

16. Defendant Damani Thomas, on information and belief, was at all times herein a resident of the County of Kings, State of New York and is currently incarcerated in Rikers Island incident to the shooting of Plaintiffs.

JURISDICTION

17. This Court has jurisdiction over the parties pursuant to New York's Civil Practice Law and Rules (**“CPLR”**) §301.

18. Venue in this County is proper pursuant to CPLR §503 and/or CPLR §504(3), as

Plaintiff was, and is, a resident of this county.

19. Plaintiff demands judgment against Defendants and Defendant John Does in an amount exceeding the jurisdiction of all lower courts.

PROCEDURAL REQUIREMENTS

NOTICE OF CLAIM

20. Plaintiff has complied with General Municipal Law Section 50 and all procedural requirements necessary to commence a lawsuit against Defendant City of New York.

21. 18. This is an action for physical and psychological injuries, along with past and future medical expenses, among other things, sustained by PlaintiffS arising out of the Incident, which occurred on July 14, 2017.

22. On or about the 7th day of September 2017, within ninety days after the claim alleged herein arose, a notice of claim, in writing, sworn to by the Plaintiffs, was served upon the defendants by personal delivery of the notice in duplicate, to the clerk designated by defendants to accept service and that the notice of claim set forth the name and post office address of the Plaintiffs, and of the Plaintiffs' attorney, the nature of the claim, the time when, the place where and the manner in which said claims arose, and the injuries and damages sustained herein as far as then practicable.

23. At least thirty (30) days have elapsed since the service of the notice of claim, and adjustment or payment thereof has been neglected or refused.

24. That a statutory 50-h hearing was held on January 9, 2018 pursuant to General Municipal Law 50(e) wherein the defendants examined the plaintiffs with regard to this claim of this action. Defendants have refused or neglected to adjust or settle this action.

25. This action was commenced within one year and ninety days after the happening of the event upon which the claim is based

FACTS

26. That the defendant, **THE CITY OF NEW YORK**, its agents, servants and/or employees operated, maintained, and controlled a police force known as **THE NEW YORK CITY POLICE DEPARTMENT**, including all the police officers employed thereby.

27. That at all times hereinafter mentioned defendants, P.O. "JOHN" Kim was employed by the defendant, THE NEW YORK CITY POLICE DEPARTMENT.

28. That at all times hereinafter mentioned defendants, P.O.'s "JOHN DOE" was employed by the defendant, THE NEW YORK CITY POLICE DEPARTMENT.

29. That on or about July 13, 2017 at approximately 10:55pm plaintiff Alhaji Bah (Plaintiff 1) was parked in the parking lot of a McDonalds located at or near 57 Empire Blvd, Brooklyn, NY, along with his friends, after completing his nightshift for the day.

30. That Plaintiff 1 was sitting in his Black 2011 BMW 3 Series while watching a movie on his phone while his friends stood outside of his car because of the hot weather.

31. That Plaintiff 1 heard, but did not register, his friends alerted him that someone had a gun.

32. That by the time Plaintiff 1 registered that his friends had fled from the car, he looked up to see two individuals with their faces covered with bandanas approaching Plaintiff 1.

33. That the two individuals asked Plaintiff 1 if he belonged to a certain gang and Plaintiff 1 stated no.

34. That the two individuals again asked the same question to which Plaintiff provided

the same answer.

35. That in the duration of the interaction between Plaintiff 1 and the two individuals, Plaintiff 1 did not see their faces.

36. That as the individuals came closer to Plaintiff 1 he noticed that one of them took out a shiny metal object which Plaintiff 1 believed to be a gun. Plaintiff 1 then fled.

37. That as the Plaintiff 1 fled, his keys to the car were left inside the car.

38. That when Plaintiff 1 ran away to a safe distance, Plaintiff 1 turned around to look towards the McDonalds parking lot to see if the two individuals were following him.

39. That when Plaintiff 1 looked back from a safe distance, he saw the two individuals driving away in his car and while exiting the McDonald's parking lot, they hit another car that was parked.

40. That the two individuals did not stop after hitting the parked car, but rather continued to drive away in the opposite direction from Plaintiff 1.

41. That, upon information and belief, by fleeing from the scene of the crash, the individuals were in violation of VTL 600(1).

42. That Plaintiff 1 then contacted 911.

43. That on or about July 13, 2017 at approximately 11:30pm at or near Empire and Franklin Avenue, uniformed officers of the NYPD answered a call related to a carjacking of the plaintiff Alhaji Bah (Plaintiff 1).

44. That the vehicle that was stolen was a Black 2011 BMW 3 Series.

45. That Plaintiff 1 informed the NYPD of the whole incident that transpired moments before including providing details about the two individuals having a gun and their faces being

covered.

46. That prior to fleeing, a friend of Plaintiff 1, Mr. Ibraheemi, had left his iphone inside the carjacked Black 2011 BMW 3 Series.

47. That after notifying said officers of the carjacking that occurred at 57 Empire Blvd, in the County of Kings, Bah and Ibrahim were able to locate the stolen vehicle using the “find my iphone” app after some time.

48. That after the vehicle’s location was determined, the unknown officers that responded to the 911 call directed Plaintiff Alhaji Bah and Ibraheemi to accompany the officers in the police SUV vehicle to the car’s location.

49. That the unknown officer communicated and promised to Plaintiff Bah that if his car was recovered that the car would either be impounded or towed away and that Plaintiff 1 relied upon this promise in following the officers.

50. That unknown officers drove Plaintiff Alhaji Bah and his friend(s) to the location of the vehicle in the middle of the night.

51. That the car was found on the street, parked illegally on Parkside Avenue and Parade Place.

52. That the neighborhood at Parkside and Parade Place, upon information and belief, is known to be a high crime area.

53. That upon inspection of the car, the driver side window and mirror of the car was visibly shattered.

54. That upon arrival, unknown uniformed officers began to ask Plaintiff 1 if he can identify who car jacked his vehicle.

55. That Plaintiff 1 reminded the officers that he did not see the two individuals who stole his vehicle as they both had their faces covered the whole time they interacted with Plaintiff 1 prior to fleeing with his car.

56. That the unknown officers once again asked Plaintiff 1 if the perpetrators had a gun and Plaintiff 1 once again stated that he was sure they had a gun since he saw them pull out something silver.

57. Unknown officers once again questioned Plaintiff 1 if he could identify the culprit, to which Plaintiff 1 repeated his earlier response of not being able to see their faces since they covered their faces.

58. That while this questioning ensued, unknown to Plaintiff, another set of officers were conducting a "line up" of Black males at a nearby playground/park.

59. That upon information and belief, there was no probable cause for stopping these Black men and establishing a line up.

60. That despite Plaintiff 1's insistence that he could not identify the perpetrator, unknown officers then instructed plaintiff 1 to go back into the police SUV, which he did, whereupon Plaintiff 1 was driven to the nearby playground/park located at or around a Parade Pl and Crooke Avenue. There, the unknown officers had already stopped a group of Black men whom they had standing in a "line up," and asked Plaintiff 1 to identify who carjacked him.

61. Specifically, an unknown officer that was in the SUV with Plaintiff 1 asked Plaintiff 1 whom he thought might have committed the aforementioned crime.

62. That Plaintiff 1 felt hurried to identify, no matter how falsely, anyone from the line up as the perpetrator of the carjacking.

63. That Plaintiff 1, surprised and confused, once again reiterated how he was unable to identify the perpetrators as the alleged perpetrators had their faces covered at the time of the carjacking.

64. That after Plaintiff 1, holding onto his moral and religious conviction, refused to falsely identify any of the men in the line up, the officers in the SUV reversed the SUV from Parade Place and Crooke Avenue to Parade Place and Parkside Avenue, whereupon they told Plaintiff 1 to exit the vehicle.

65. That the unknown officers then proceeded to ask Plaintiff 1's friends one by one to identify from the line-up whom they thought the perpetrators were.

66. That as they had done with Plaintiff 1, officers drove each friend was driven in the SUV to Parade Place and Crooke Avenue, or thereabouts, and driven back to Parade Place and Parkside Avenue.

67. That, upon information and belief, Defendant Thomas lived, stayed, resided at or occupied a residence at the building located at the corner of Parkside Avenue and Parade Place and was therefore able to see the Plaintiff and his friends as they exited the SUV.

68. That, similar to Plaintiff 1, his friends also reiterated not being able to recognize anyone from the line-up as the carjacking men had their faces covered at the time of the carjacking.

69. That Plaintiff 1 and his friends were asked by the unknown officers to identify whom they "thought" were the perpetrators and not whom they knew to be the perpetrators.

70. Around midnight, after no one, not Plaintiff 1 or his friends, was able to identify the perpetrators, the unknown officers questioned how none of the supposed witnesses were able to identify who committed the carjacking?

71. That plaintiff 1 reiterated how he did not see their faces since they were covered to which the unknown officers responded that the plaintiff and his friends were not cooperating, thus the officers would no longer help plaintiff 1 and his friends.

72. That the officers refused to help, assist or otherwise further investigate the ongoing felony because Plaintiff 1 and his friends were unwilling to falsely identify the aforementioned Black men.

73. That Plaintiff 1 then asked the officers that if the officers cannot help, would they at least have his car impounded, as they had promised, but the unknown officers refused, stating that Plaintiff 1 has to take that up with his insurance carrier.

74. That Plaintiff 1 continued to press the officers and inform them that he would their help with his car since he would need his car to leave the current location.

75. That the unknown officers responded that since Plaintiff 1 saw his car, therefore it is no longer registered as stolen and thus the officers cannot help him.

76. That Plaintiff 1, baffled by the officers' response, alerted them that how could the car no longer be considered stolen, especially since he did not have to keys to the car, hence how could he move it.

77. That unknown officers, contrary to the promise they had made to Plaintiff 1, instructed Plaintiff 1 to take it up with his insurance to tow the car. Then, unknown officers proceeded to claim that they have another call and then left Plaintiff 1 and his friend alone in the middle of the night at street where the perpetrators had parked the vehicle.

78. That Plaintiff's car had been damaged by Defendant Thomas and his cohorts after having an accident by crashing into another car whilst existing the McDonald's parking lot.

79. That the damage to the car was visible and apparent and the nature, or the manner by which the damage had occurred had been conveyed to the officers by Plaintiff 1.

80. That the officers knew and were aware that after the accident, Defendant Thomas fled the scene of the accident with his cohort(s) in violation of VTL 600.

81. That by refusing to investigate the crash and also refusing to investigate the carjacking, and therefore leaving Plaintiff 1 in a dangerous situation, the officers were in violation of the guidelines set forth in the Police Guide: Procedure Nos 207-01, 207-11, 207-32, and 208-66.

82. That after the unknown officers left Plaintiff 1 to fend for himself and resolve the damage resulting from the accident as well as the carjacking, Plaintiff 1 contacted his car insurance company, Geico, and requested a tow truck to retrieve his car.

83. That a Geico tow truck eventually arrived but did not have a tow hook, and could not tow Plaintiff 1's car without causing damage to the car.

84. That the Geico tow truck left and another tow truck with a hook was requested.

85. That after some time, Plaintiff 2, Aboubacar Fofana, with another friend, Mustafa, arrived and asked Plaintiff 1 about what transpired. That while Plaintiff 1 was telling Plaintiff 2 what happened, another patrol car with Officer Kim arrived.

86. That Plaintiff 1 knew of Officer Kim as he recognized the officer after seeing the officer in his neighborhood on prior occasions. That on information and belief, at all times herein, officer Kim was from the 72nd Precinct.

87. That as Plaintiff 1 explains the events that transpired that night, the Plaintiff and Officer Kim notice that Plaintiff 1's carjacked vehicle's lights begin to flicker and the windows

begin to move up and down.

88. That the flickering and rolling up and down of the windows can be remotely controlled by the BMW's remote keys that were in the possession of the carjackers at the time.

89. That there is a button on the remote keys of the car that when pressed, flicker the lights and controlling the rolling up and down of the windows.

90. That when the lights flickered and the windows rolled, Plaintiff 1 expressed a look of fear to Officer Kim to which the officer responded, "that's creepy dude."

91. That at that point, Plaintiff 1 explicitly informed Officer Kim that such movement of the car could only be done through the key remote and how plaintiff 1 feels as if he is being watched, how the perpetrators still have his keys and how Plaintiff 1 did not feel safe at the current location.

92. That Officer Kim declined to help Plaintiff 1 by stating that he could not help them.

93. That officer Kim asked Plaintiff 1 what he was told by the previous responding officers.

94. That Plaintiff 1 repeated how the prior officers instructed him to call a tow truck.

95. That upon Officer Kim's refusal to help, Plaintiff 1 asked Officer Kim what if someone arrives at the scene and hurts him.

96. That Officer Kim responded with a look of disbelief as if the Plaintiff was joking and instructed the Plaintiff to call his insurance company.

97. That Plaintiff 1 proceeded to ask Officer Kim if he could at least check on to see if the car was registered as stolen or recovered in NYPD's database.

98. That Officer Kim proceeded to talk over his walkie-talkie, came back to plaintiff 1,

informed him that Officer Kim would not be able to help him, how the officer had to leave and the officers just left.

99. That sometime after Officer Kim left, Plaintiff 1 sat in Plaintiff 2's car and parked the car on the same side of the street as the location of the carjacked vehicle.

100. That when Plaintiff 1 got out the car to check on his own vehicle, he noticed three men walking towards him: one on a bike which his face covered with a blue bandana and two on foot.

101. That scared, Plaintiff 1 ran towards Plaintiff 2's car and immediately instructed Plaintiff 2 to start the car and upon entering the car, told plaintiff 2 to leave.

102. That Plaintiff 2's car was "locked in" because after Plaintiff 2 parked his car in front of another car on the side of the street, an unknown individual parked his car in front of Plaintiff 2, making it a bit more difficult for Plaintiff 2 to pull out and drive away.

103. That immediately after Plaintiff 1 entered Plaintiff 2's car, as Plaintiff 2 tried to drive out of the parking space, the individual wearing the mask on the bike came besides the car and shot five rounds into the car.

104. That Plaintiff 2 was struck by the initial rounds of firing.

105. That Plaintiff 1 was struck in his back by one round of the masked individuals discharge of gun.

106. That upon trying to get of the car and get away when his attackers were about to get away, Plaintiff 1 fell out of the car, only to be noticed by the 3 attackers.

107. That Plaintiff 1 tried to slide under his car and realized that the three perpetrators were walking towards him once more.

108. That scared that they might shoot or attack him, Plaintiff 1 played dead so that attackers would not hurt him further.

109. That upon coming near Plaintiff 1, and seeing how there was no movement from the Plaintiff 1, the attackers fled the scene.

110. That Plaintiff 1 managed to get his phone and call 911.

111. That upon informing 911 of his injury and the shooting, police officers and the ambulance arrived after some time.

112. That one of the responding officers was Officer Kim, to whom Plaintiff 1 looked at and stated how Plaintiff 1 told him he would get hurt.

113. That as a result of the gunshot wounds that Plaintiff 2 sustained, Plaintiff 2 dies.

114. That as a result of the gunshot wounds sustained by Plaintiff 1, Plaintiff 1 required numerous surgeries, missed school, missed work and delayed continuing of his studies.

115. That, upon information and belief, the assailant was captured by use of video cameras.

116. That according to Det. Jean Pierre, it took the homicide detectives five minutes determine the assailant, Defendant Damani Thomas.

117. That Defendant Damani Thomas has been charged with the injury of Plaintiff Bah and the killing of Aboubacar Fofana.

118. That on or about August 3, 2017 Damani Thomas was indicted for Murder in the Second Degree, Attempted Murder in the Second Degree, Criminal Possession of a Weapon in the Second Degree, Robbery in the First Degree, Robbery in the Second Degree and Grand Larceny in the Fourth Degree related to the theft of the aforementioned motor vehicle.

119. That Plaintiff 1 spent a month in the hospital before his release and continues to suffer the pains of the bullet wounds.

120. That Plaintiff 2 died when he was only twenty 26 years old.

121. That prior to his death, Plaintiff 2 was a part-time student where he also worked as a delivery person.

122. That prior to his death, Plaintiff 2 did not use any sort of recreational drugs.

123. That prior to the events described above, neither Plaintiff 1 or 2 were ever involved in any sort of gangs or gang activities in the neighborhood.

124. That upon information and belief, members of the police force have falsely claimed that Plaintiffs were members of a gang or that the shooting described above was gang related.

125. That officers of members of the NYPD made the claim of gang relation in order to besmirched Plaintiffs' names.

126. That prior to his death, Plaintiff 2 would send monetary support to his family including his brother and aunt in Africa.

127. That Plaintiff 2's father, Fofana Kassoum, is a carpenter currently on disability because of an injured hand.

FIRST CAUSE OF ACTION

(State Created Danger For Bah, and Fofanas as against Defendant City and Officers)

128. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 126, inclusive, as though fully set forth herein.

129. That at all times herein, Plaintiff 1, after having been carjacked was lawfully at or near Franklin Avenue and Empire Blvd in a state of safety and security.

130. That after calling 911 and police officers arriving, the unknown officers directed Plaintiff 1 to accompany them to the place where his car was believed to be located.

131. That the unknown police officers, in addition to directing Plaintiff 1 to follow then, made affirmative promises that once his car was recovered, the unknown officers would impound or tow away Plaintiff 1's car to a place of security and safety.

132. That by transporting Plaintiff 1 to Parkside Avenue and Parade Place, the unknown police officers placed Plaintiff 1 in a state of danger.

133. That in addition the officers also placed Plaintiff 1's friends in the same state of danger.

134. That by demanding that the Plaintiff review the men in the line up, the unknown officers further exposed Plaintiff 1 to danger.

135. That by bringing Plaintiff 1 to the location of Parkside Avenue and Parade Place ("the location"), and then leaving Plaintiff 1 there for no other reason than because Plaintiff 1, and by extension his friends, refused to falsely identify the perpetrator of the carjacking, the unknown officers placed Plaintiff 1 and his friends in danger.

136. That the unknown officers owed a duty to Plaintiff 1 and his friends, including Plaintiff 2, whom were all abandoned at the location.

137. That the unknown officers knew, or had reason to know, that the location was dangerous and that the perpetrator of the carjacking was still at the location by virtue of the fact that the unknown officers placed the aforementioned Black males in a line up.

138. That Defendant Officer further witnessed incontrovertible evidence that the perpetrator was still at the location when, in Officer Kim's presence, the windows and lights of

Plaintiff 1's car were caused to be operated at the direction of someone other than Plaintiff 1 – the owner of the car.

139. That the actions of the unknown police officers, namely taking Plaintiff 1 to a dangerous situation, coercing him to falsely identify an assailant and then leaving Plaintiff 1, and by extension Plaintiff 2, at the location because he refused to falsely identify an assailant, shocks the conscience.

140. That Defendants' actions were intentional or committed with deliberate indifference for Plaintiff's safety.

141. That as a result of the foregoing, Plaintiff 1 was severely injured by Defendant Thomas and continues to suffer from said injuries.

142. That as a result of the foregoing, Plaintiff Fofana was executed by Defendant Thomas.

143. That as a result of the foregoing, Plaintiff Kassoum was caused to lose his son.

144. That Defendants, their agents, officers, servants, and employees were responsible for Plaintiff's assault. Defendant City as employers of each of the Defendant officers is responsible for their wrongdoing under the doctrine of respondeat superior.

145. That Plaintiffs seek damages in an amount that exceeds all jurisdictional limitations of lower courts.

SECOND CAUSE OF ACTION

(Special Relationship as against Defendant City and Officers)

146. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 144, inclusive, as though fully set forth

147. The defendants, by its agents and employees assumed and owed a special duty of care to Plaintiff. Specifically, Defendant officers promised, should Bah accompany him, to assist Bah, and by extension his friends, in recovering and impounding/towing Bah's stolen vehicle.

148. The defendant breached that duty and failed to protect Plaintiffs despite the opportunity to do so and had the knowledge that failure to act would result in harm.

149. The occurrence and resulting injuries to Plaintiffs were actually and legally caused by the City's negligence through its agents and employees.

150. Said occurrence and resulting injuries occurred through no fault or lack of care on the part of the Plaintiffs.

151. Defendant's actions were ministerial in nature. NYPD agents and officers failed to adhere to the established, mandatory standards for investigation and protection.

152. That as a result of the foregoing acts on the part of the defendant, CITY, ABOUBACAR FOFANA and ALHAJI BAH sustained great bodily injuries, mental distress, pain and suffering and *wrongful death*.

153. Plaintiff Kassoum son's wrongful death was due solely and wholly to the CITY'S negligence, carelessness and recklessness of the defendant.

154. The limitations on liability set forth in CPLR Section 1601 do not apply.

155. The limitations on liability set forth in CPLR Section 1601 do not apply by reason of one or more exemptions set forth in CPLR Section 1602.

156. That the defendant, CITY, had knowledge that its inaction in not remaining with the Plaintiffs until a tow truck arrived, or not fulfilling the promise of themselves removing the car from a dangerous place, could lead to harm.

157. That the defendant, CITY, affirmatively assumed the duty to act through its promises and actions to help Plaintiff Bah recover his vehicle.

158. That the plaintiffs were justified in relying on the defendant, CITY's, undertaking to help recover Bah's vehicle.

159. That as a result of the foregoing, plaintiffs KASSOUM FOFANA, father and natural guardian of the decedent, plaintiffs sustained pecuniary loss, funeral expenses and have been deprived of the support, care, society, companionship and consortium of ABOUBACAR FOFANA, all to their damage and in an amount to be determined at trial due to the wrongful death of ABOUBACAR FOFANA.

160. Defendants, their agents, officers, servants, and employees were responsible for Plaintiff's assault. Defendant City as employers of each of the Defendant officers is responsible for their wrongdoing under the doctrine of respondeat superior.

161. That as a result of the foregoing, plaintiffs' suffered wrongful death (Fofana) and pain and suffering and severe injuries (Bah) in an amount to be determined at trial that exceeds the jurisdictional limitations of all lower courts.

THIRD CAUSE OF ACTION

(42 U.S.C. §1983 For Bah and as against City and officers)

162. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 160, inclusive, as though fully set forth herein.

163. That at all times hereinafter mentioned, Defendant Police officer "John" Kim and John Doe and Jane Doe police officers engaged in the actions and conduct alleged in their official capacity as New York City police officers and under the color and authority of State law,

regulation, ordinance, custom and usage.

164. That such actions served to deprive Plaintiff Bah of the rights and privileges of the United States Constitution, the Fourteenth Amendment of the U.S. Constitution and 42 U.S.C. section 1983. In particular, the state created danger described or, alternatively, the special relationship, as described *supra*, created a Constitutional obligation, a violation of which deprives Plaintiff Bah of his substantial due process rights. *Pena v. Deprisco*, 432 F.3d 98 (2d Cir. 2005).

165. That Defendant City has as a matter of policy and practice and with deliberate indifference failed to adequately train, supervise, discipline, sanction or otherwise direct its officers, including the officers at the scene in this case, regarding the protection of the rights and privileges of citizens and failed to disclose these constitutional abuses and to take corrective measures.

166. Such practice and deliberate indifference has served to encourage and sanction the police officers' unlawful conduct described above, and was a proximate cause of the violation of Bah's rights as described herein.

167. That Defendants, their agents, officers, servants, and employees were responsible for Plaintiff's assault. Defendant City as employers of each of the Defendant officers is responsible for their wrongdoing under the doctrine of respondeat superior.

168. That Plaintiff Bah seeks damages, compensatory and exemplary, in an amount that exceeds all jurisdictional limitations of lower courts.

FOURTH CAUSE OF ACTION

(42 U.S.C. §1983 For Fofana and as against City and officers)

169. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1

through 167, inclusive, as though fully set forth herein.

170. That at all times hereinafter mentioned, Defendant Police officer “John” Kim and John Doe and Jane Doe police officers engaged in the actions and conduct alleged in their official capacity as New York City police officers and under the color and authority of State law, regulation, ordinance, custom and usage.

171. That such actions served to deprive Plaintiff Bah of the rights and privileges of the United States Constitution, the Fourteenth Amendment of the U.S. Constitution and 42 U.S.C. section 1983. In particular, the state created danger described or, alternatively, the special relationship, as described *supra*, created a Constitutional obligation, a violation of which deprives Plaintiff Fofana of his substantial due process rights. *Pena v. Deprisco*, 432 F.3d 98 (2d Cir. 2005).

172. That Defendant City has as a matter of policy and practice and with deliberate indifference failed to adequately train, supervise, discipline, sanction or otherwise direct its officers, including the officers at the scene in this case, regarding the protection of the rights and privileges of citizens and failed to disclose these constitutional abuses and to take corrective measures.

173. Such practice and deliberate indifference has served to encourage and sanction the police officers’ unlawful conduct described above, and was a proximate cause of the violation of Fofana’s rights as described herein.

174. That Defendants, their agents, officers, servants, and employees were responsible for Plaintiff’s assault. Defendant City as employers of each of the Defendant officers is responsible for their wrongdoing under the doctrine of respondeat superior.

175. That Plaintiff Fofana seeks damages, compensatory and exemplary, in an amount

that exceeds all jurisdictional limitations of lower courts.

FIFTH CAUSE OF ACTION

(Monell Claim - Negligence)

176. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 174, inclusive, as though fully set forth herein.

177. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/ authority, which is forbidden by the United States Constitution.

178. The aforementioned customs, policies, usages, practices, procedures and rules of Defendant City of New York and the NYPD included, but were not limited to, the inadequate screening, hiring, retaining, training and supervising of its employees that was the moving force behind the violation of Plaintiffs' rights as described herein. As a result of the failure of the Defendant City of New York to properly recruit, screen, train, discipline and supervise its officers, including the Individuals Defendants, Defendant City of New York has tacitly authorized, ratified and has been deliberately indifferent to, the acts and conduct complained of herein.

179. The aforementioned customs, policies, usages, practices, procedures and rules of Defendant City of New York and the NYPD included, but were not limited to: arresting innocent persons in order to meet "productivity goals," or arrest quotas; arresting individuals for professional advancement, overtime compensation, and /or other objectives outside the ends of justice; and/or manufacturing false evidence against individuals in an individual effort and also in a conspiracy to justify their abuse of authority in falsely arresting, unlawfully stopping and maliciously prosecuting those individuals.

180. That included in the policy of wrongful arrests in the pressuring of claimants to falsely identify innocent persons in order to effectuate an arrest in order to meet productivity goals.

181. That specifically to this matter, the goals were unachievable in that Plaintiff Bah refused to falsely identify, manufacture or create false evidence to effectuate the unlawful arrest of the aforementioned Black males that were presented for a line-up.

182. That as a result of Bah's refusal to assist the officers in the arrest of innocent Black males, the officers involved herein, left Bah, and eventually, Fofana, for execution by Defendant Thomas.

183. That as a result of Bah's refusal to assist the officers in the arrest of innocent Black males, the officers violated those rights and privileges owed to him under the constitution.

184. That the City had prior knowledge of the inappropriate, unlawful and improper conduct of the defendant officers and continued to employ them and allowed them to be in contact with the public at large.

185. The foregoing customs, policies, usages, practices, procedures and rules of the Defendant City of New York and the NYPD constituted deliberate indifference to Plaintiffs' safety, well-being and constitutional rights.

186. By reason of the foregoing, the plaintiffs were damaged in an amount exceeding the jurisdictional limits of all the lower Courts.

SIXTH CAUSE OF ACTION

(Wrongful Death On Behalf of the Administrator of the Estate as To Defendant Thomas)

187. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 185, inclusive, as though fully set forth herein.

188. That on July 14, 2017 Plaintiff Aboubacar Fofana died as a result of the Defendant's intentional act.

189. That prior to the time of Plaintiff Fofana's death he was employed as a ##### and gave support to his family.

190. Decedent Fofana was survived by his father Fofana Kassoum, ### by reason of the actions of the Defendant Thomas herein alleged, and said surviving heirs have been deprived of the decedent's involvement in their lives as described herein.

191. As a result of the foregoing, the Plaintiff Fofana Kassoum became responsible for the expenses of decedent's funeral and has suffered pecuniary loss as a result thereof.

192. By reason of the foregoing, the plaintiff was damaged in an amount exceeding the jurisdictional limits of all the lower court for wrongful death of the decedent Aboubacar Fofana.

SEVENTH CAUSE OF ACTION

(For Assault and Battery For Bah as against Defendant Thomas)

193. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 191, inclusive, as though fully set forth herein.

194. That Defendant Thomas put Plaintiff Bah in reasonable fear of imminent bodily harm which was done intentionally and without Plaintiff Bah's consent.

195. Defendant Thomas intentional caused Bah to be touched, namely by shooting him, without his consent or permission and that said contact was offensive.

196. That as a direct and proximate cause of the aforementioned assault and battery, Plaintiff sustain and will continue to sustain injury, pain and suffering, serous psychological and emotional distress and mental anguish.

197. As a direct and proximate cause of the aforementioned assault and battery, Plaintiff incurred expenses and economic damage.

198. Plaintiff Bah seeks an amount in damages that exceed the jurisdictional requirements of all lower court.

EIGHTH CAUSE OF ACTION

(For Assault and Battery For Fofana as against Defendant Thomas)

199. Plaintiffs repeat and reallege each and every allegation contained in Paragraphs 1 through 197, inclusive, as though fully set forth herein.

200. That Defendant Thomas put Plaintiff Fofana, prior to his death, in reasonable fear of imminent bodily harm which was done intentionally and without Plaintiff Fofana's consent.

201. Defendant Thomas intentional caused Fofana to be touched, namely by shooting him, without his consent or permission and that said contact was offensive.

202. That as a direct and proximate cause of the aforementioned assault and battery, Plaintiff Fofana was killed.

203. As a direct and proximate cause of the aforementioned assault and battery, Plaintiff incurred expenses and economic damage.

204. Plaintiff Bah seeks an amount in damages that exceed the jurisdictional requirements of all lower court.

NINTH CAUSE OF ACTION

(Loss of Services)

205. Plaintiffs repeat and reallege each and every allegation contained in Paragraphs 1 through 203, inclusive, as though fully set forth herein.

206. At all times hereinafter mentioned, Plaintiff Fofana Kassoum was the father of decedent Aboubacar Fofana with whom he enjoyed society and companionship prior to this occurrence.

207. As a result of the Defendant Thomas' intentional act, Fofana Kassoum has been deprived of the society and companionship of Aboubacar Fofana forever.

208. By reason of the foregoing, the Plaintiff Kassoum was damaged in an amount exceeding the jurisdictional limits of the lower courts.

TENTH CAUSE OF ACTION

(FAILURE TO INTERVENE)

209. Plaintiffs repeat and reallege each and every allegation contained in Paragraphs 1 through 207, inclusive, as though fully set forth herein.

210. Defendant unknown officers had an affirmative duty to intervene on behalf of Plaintiffs whose constitutional rights, as alleged above, were being violated in their presence by other officers.

211. The defendants failed to intervene to prevent the unlawful conduct described herein.

212. As a result of the foregoing, Plaintiffs were subject to the damages and injuries described above.

213. As a result of the foregoing, Plaintiffs are entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

WHEREFORE, plaintiffs demand judgment against the defendant on the First cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, and judgment on the Second cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, and judgment on the Third cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, and judgment on the Fourth cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, judgment on the Fifth cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, on the Fifth cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, on the Sixth cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, on the Seventh cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, on the Eighth cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, on the Ninth cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, on the Tenth cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, for punitive damages on each on the causes of action, and together with the costs and disbursements of this action and any other and further relief as to this court deems just and proper.

Dated: Brooklyn, New York
July 3, 2018

Yours, etc.


DAVIS NDANUSA IKHLAS & SALEEM LLP
MUSTAPHA NDANUSA, ESQ.

Attorney for Plaintiffs
26 Court Street, Suite 603
Brooklyn, New York 11242
Tel.: (718) 783-6819

VERIFICATION

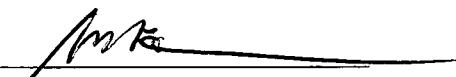
STATE OF NEW YORK)
 : SS.:
COUNTY OF KINGS)

FOFANA KASSOUM, being duly sworn deposes and says:

That I am one of the Plaintiffs in this action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true.

FOFANA KASSOUM
FOFANA KASSOUM

Sworn to before me this
3rd day of July 2012


NOTARY PUBLIC

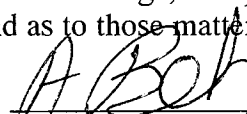
MUSTAPHA LAKPENE NDANUSA
NOTARY PUBLIC-STATE OF NEW YORK
No. 02ND6094956
Qualified in Kings County
My Commission Expires 06-30-2013

VERIFICATION

STATE OF NEW YORK)
 : SS.:
COUNTY OF KINGS)

ALHAJI BAH, being duly sworn deposes and says:

That he is a Plaintiff in this action; that he has read the foregoing Verified Complaint and knows the contents thereof; that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters she believes it to be true.



ALHAJI BAH

Sworn to before me this
3rd day of July 2018



NOTARY PUBLIC

MUSTAPHA LAKPENE NDANUSA
NOTARY PUBLIC-STATE OF NEW YORK
No. 02ND6094956
Qualified in Kings County
My Commission Expires 06-30-2019

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

Index

ALHAJI BAH, KASSOUM FOFANA, as Administrator of the
Estate of ABOUBACAR FOFANA, on his own behalf and
KASSOUM FOFANA individually

Plaintiffs,

-against-

CITY OF NEW YORK, et al

Defendants.

VERIFIED AMENDED COMPLAINT

DAVIS NDANUSA IKHLAS & SALEEM LLP.

Attorneys for Plaintiffs
26 Court Street, Suite 603
Brooklyn, New York 11242
(718) 825-7719

Pursuant to Article 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Dated: July 2, 2018

Signature: _____

Print Signer's Name: MUSTAPHA NDANUSA, Esq.

Service of a copy of the within

is hereby admitted. _____

Dated:

Attorney(s) for

Please take notice

NOTICE OF ENTRY

that the within is a (certified) true copy of a
, 19 .

duly entered in the Office of the Clerk of the within court on

NOTICE OF SETTLEMENT

that an order

of which the within is true copy will be prepared for settlement to the Hon.

one of the judges of the within named court, at
M.

on , 19 at

Dated,

Yours, etc.

MUSTAPHA NDANUSA, ESQ.

Attorney for Plaintiffs

26 Court Street, Suite 603

Brooklyn, New York 11242

(718) 783-6819

mndanusa@dnislaw.com

To: